KARNATAKA LEGISLATIVE ASSEMBLY
SIXTEENTH LEGISLATIVE ASSEMBLY
FIFTH SESSION

THE KARNATAKA GROUND WATER (REGULATION AND CONTROL OF DEVELOPMENT AND MANAGEMENT) (AMENDMENT) BILL, 2024

(LA Bill No. 48 of 2024)

A Bill to amend the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011.

Whereas it is expedient to amend the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011 (Karnataka Act 25 of 2011) for the purposes hereinafter appearing;

Be it enacted by the Karnataka State Legislature in the seventy-fifth year of the Republic of India as follows:

1. Short title and commencement.-(1) This Act may be called the Karnataka Ground Water (Regulation and Control of Development and Management) (Amendment) Act, 2024.

(2) It shall come into force at once.

2. Amendment of section 2.- In the Karnataka Ground Water (Regulation and Control of Development and Management) Act, 2011 (hereinafter referred to as the principal Act) in section 2, after clause (j), the following shall be inserted, namely:-

"**(j-a) "Implementing Agency"** with all its grammatical variations and cognate expression in relation to a Government agency, public or private enterprise that undertakes drilling bore-wells or tube wells, maintenance and supply of water either directly or through contractors;"

3. Amendment of section 11.- In section 11 of the principal Act, after sub-section (5), the following shall be inserted, namely:-

"(5A) On obtaining the permission from the Ground Water Authority or District Ground Water Committee, the land owner or implementing agency before digging a bore-well or tube well shall inform in writing at least fifteen days in

advance to the officer of the local authority or urban local bodies as the case may be notified by the Government from time to time."

4. Insertion of new section 11A.- After section 11 of the principal Act, the following new section shall be inserted, namely:-

"11A. Measures to be taken by the land owner and implementing agency to extract and use ground water in the area other than notified area.- The Owner of the Land or Premises or implementing agency in the area other than notified area before digging the bore-well or tube well shall inform in writing at least fifteen days in advance to the officer of the local authority or urban local bodies as the case may be notified by the Government from time to time."

5. Amendment of section 12.- In section 12 of the principal Act, in sub-section (8), for the words, "in order to avoid untoward incidents" the words "or tube well as in such manner as may be prescribed" shall be substituted.

6. Insertion of New chapters IIIA and IIIB.- After section 21 of the Principal Act, the following new chapters shall be inserted, namely:-

"CHAPTER-IIIA

MEASURES TO PREVENT CHILDREN FALLING IN FAILED OR DEFUNCT ABANDONED OPEN BORE-WELL

21A. Duties of the Drilling Agency, Implementing Agency and Land Owner.- (1) Immediately after the completion of drilling the bore-well or tube well, the drilling agency or implementing agency, shall cap the bore-well or tube well properly either by steel cap with bolts and nuts or with a threaded cap as a safety measure to prevent fatal accidents.

(2) In case of failed or abandoned or incomplete drilled bore-well or tube well to avoid caving and collapse, the same shall be filled with locally resourced stones and slurry and build a mound 2'x2' above the ground level. The mound shall be fenced with barbed wire or locally available thorny plants. Such filling shall not be with solid waste or chemical waste materials.

(3) The drilling agency and/or the implementing agency shall safely close failed or abandoned or incompletely drilled bore-well or tube well as stated in sub-section (2) within 24 hours and shall inform the concerned authorities immediately the action taken in this regard along with photographs of the closed bore-well or

tube well and the concerned authority shall after inspection issue a certificate certifying the bore-well is properly closed.

(4) The drilling agency shall submit a declaration to the nearest Gram Panchayat or Village Administrative Officer in case of Rural Areas and Junior Engineer (Works), working under the respective Municipal Commissioner or Chief Officer of the Jurisdictional Urban Local Body as the case may be stating that, he has complied with requirements of above sub-sections (1), (2) and (3).

(5) In case of repairs immediately after the removal of submersible pump or suction pipe, the owner or servicing agency shall cap the bore-well or tube well properly either by steel cap with bolts and nuts or with a threaded cap as a safety measure to prevent fatal accidents.

(6) If the owner intends to rejuvenate inoperative or defunct bore-well or tube well, the owner of the land or premises shall have to safely close and cover such bore-well or tube well either by steel cap with bolts and nuts or with a threaded cap as a safety measure to avoid causalities.

21B. Fixing Signboards at the bore-well or tube-well site.- Drilling Agency shall erect signboards at the time of drilling, repairs, rejuvenation of the bore-well or tube well near the site displaying complete address of the Drilling Agency or Implementing Agency or Owner of the land or premises.

21C. Fencing the bore-wells or tube wells.- The Drilling Agency shall erect the barbed wire fencing or any other suitable barrier around the bore-well or tube well during the drilling, repairs, rejuvenation to avoid entry of unconnected persons or children.

CHAPTER- III B

DUTIES OF THE LOCAL AUTHORITIES

21D. Duties of the local authorities.- (1) The Panchayat Development Officer of Gram Panchayat, Village Administrative Officer, Junior Engineers or Officers of the respective urban local authorities and boards such as the Bangaluru Water Supply and Sewerage Board, Municipal Corporations and Municipalities including implementing Government Agencies, as the case may be shall keep vigil on the bore-wells or tube wells drilled and shall also ensure that the failed or

abandoned or defunct bore-wells or tube wells are closed properly to avoid human causalities.

(2) The Panchayat Development Officer of Gram Panchayat, Village Administrative Officer, Junior Engineers or Commissioner or Chief Officers of the respective urban local authority shall maintain a register in respect of bore-wells or tube-wells as specified in proforma and submit a quarterly report to the Ground Water Authority or to any officer authorized in this behalf under section 21A.

(3) The officer in-charge of implementing agency of drinking water or irrigation or commercial schemes shall ensure that, the operating bore-wells or tube wells are covered safely.

(4) The Panchayat Development Officer of the concerned Gram Panchayat shall display in the premises of panchayat office a board in Kannada language regarding measures to be taken in respect of successful or failed or abandoned or defunct or incompletely drilled bore-well or tube well.

7. Amendment of section 32.- In section 32 of the Principal Act, for sub-section (4), the following shall be substituted, namely:-

"(4) Any person or drilling or digging agency which contravenes or fails to comply with conditions of certificate of registration, except those mentioned in sub-section (1), shall be punishable with fine which may extend to ten thousand rupees or imprisonment for a term which may extend to one year. In case of subsequent and continuing failure or contravention the authority or any other person authorized by it to exercise any of the powers under this Act may seize and confiscate the drilling or digging equipment and machinery in the manner as may be prescribed."

8. Insertion of new section 32A.- After section 32 of the Principal Act, the following new section shall be inserted, namely:-

"**32A. Punishment and penalties.-** (1) If any person violates the provisions of section 11A shall be punished with simple imprisonment for a term which may extend to three months or with fine which may extend to five thousand rupees.

(2) If any person violates the provisions of section 21A shall be punished with simple imprisonment for a term which may extend to six months and with fine which may extend to ten thousand rupees.

(3) Failure on the part of drilling and servicing agencies to comply with the provisions of section 21A shall be punished with simple imprisonment for a term which may extend to one year and with fine which may extend to twenty five thousand rupees.

(4) If any drilling and servicing agency fails to comply with the duties under sections 21B and 21C shall be punished with simple imprisonment for a term which may extend to three months or with fine which may extend to five thousand rupees.

(5) Failure on the part of any authorities to perform the duties under section 21D shall be treated as misconduct and liable for disciplinary action."

9. Insertion of new section 33A.- After section 33 of the Principal Act, the following new section shall be inserted, namely:-

"33A. **cognizable offences.-** Notwithstanding anything contained in any other provisions of this Act, the offences specified in sub-section (1),(2),(3) and (4) of section 32A shall be cognizable offences."

10. Amendment of section 38.- In section 38 of the Principal Act, in sub-section (2), after clause (m), the following shall be inserted, namely:-

"(n) Maintaining registers and proformas under sections 11A and 26;

(o) Duties of drilling agency, implementing agency and maintaining registers under section 21A;

(p) Size and fixing sign boards at the bore-well or tube well site under section 21B;

(q) Fencing the bore-wells or tube wells to avoid entry of unconnected persons and children under section 21C; and

(r) Issuing notifications to designate an officer for each local authority or urban local bodies or boards to inspect and supervise the defunct bore-well or tube well.

11. Power to remove difficulty.- (1) If any difficulty arises in giving effect to the Karnataka Ground water (Regulation and Control of Development and Management) (Amendment) Act, 2024 the State Government may, by notification

in the Official Gazette, make such provisions as may appear to it to be necessary or expedient for purpose of removing the difficulty:

Provided that, no such order shall be made after the expiry of a period of two years from the date of commencement of the Karnataka Ground water (Regulation and Control of Development and Management) (Amendment) Act, 2024.

(2) Every order made under sub-section (1), shall as soon as after it is made, be laid before the State Legislature.

STATEMENT OF OBJECTS AND REASONS

Bore wells or tube wells which have failed or are defunct or have been abandoned and are unprotected without closing, have resulted in many incidents of tender-aged children falling into them, in the State of Karnataka.

Therefore, the Karnataka Law Commission has recommended amendments to certain sections of the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011 (Karnataka Act 25 of 2011) in its 61st report.

Therefore, it is considered necessary to amend the said Act to provide for proper mechanism for safety measures as well as punishment for negligence by the drilling agency or implementing agency or apathy by the concerned authorities, and certain other provisions are to be incorporated in the said Act.

Hence, the Bill.

FINANCIAL MEMORANDUM

There is no extra expenditure involved in the proposed legislative measure.

MEMORANDUM REGARDING DELEGATED LEGISLATION

Clause 5	Sub- section (8) of section 12 sought to be inserted by clause 5, empowers the State Government to make rules regarding manner of sealing the defunct bore-wells or tube wells.
Clause 7	Sub-section (4) of section 32 sought to be substituted by clause 7, empowers the State Government to make rules regarding manner of seizing and confiscate the drilling or digging equipment and machinery.

The proposed delegation of legislative power is normal in character.

N.S. BOSERAJU
Minister for Minor Irrigation and Science and Technology

M.K. VISHALAKSHI
Secretary
Karnataka Legislative Assembly

ANNEXURE

THE KARNATAKA GROUND WATER (REGULATION AND CONTROL OF DEVELOPMENT AND MANAGEMENT) ACT, 2011

KARNATAKA ACT NO 25 OF 2011

XXX XXX XXX

2. Definitions.- XXX XXX XXX

XXX XXX XXX

11. Grant of permit to extract and use groundwater in the notified area.-

XXX XXX XXX

12. Registration of existing users in the notified areas.-

XXX XXX XXX

(8) If a registered well becomes defunct this fact should be immediately brought to the notice of the authority by the user of groundwater and shall seal the defunct bore well in order to avoid untoward incidents.

XXX XXX XXX

32. Offences and penalties.- XXX XXX XXX

(4) Any person or drilling or digging agency which contravenes or fails to comply with any other provision of this Act or any rule made thereunder or conditions of certificate of registration, except those mentioned in sub-section (1) above, shall be punishable with fine which may extend to ten thousand rupees or imprisonment for a term which may extend to one year. In case of subsequent and continuing failure or contravention the authority or any other person authorized by it to exercise any of the powers under this Act may seize and confiscate the drilling or digging equipment and machinery in favour of Government in the manner as prescribed.

XXX XXX XXX

38. Power to make rules.- XXX XXX XXX

XXX XXX XXX

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